

that it was the duty of the court to surrender the vessel and remit the libelant to the relief obtainable by diplomatic negotiations P. 587.

4. The Republic of Peru did not waive its claim of immunity by urging it both before the Department of State and the court or by reserving the right to interpose other defenses. P. 589.

Leave to file granted.

ON MOTION for leave to file a petition for a writ of prohibition and/or mandamus to prohibit the district court from further exercise of jurisdiction over a proceeding *in rem* in which a vessel was seized, and to direct the district judge to enter an order declaring the vessel immune.

*Mr. Edgar R. Kraetzer*, with whom *Mr. Monte M. Lemann* was on the brief, for petitioner.

*Mr. Joseph M. Rault*, with whom *Messrs. George H. Terriberry* and *Walter Carroll* were on the brief, for Galban Lobo Co., S. A., et al., respondents.

MR. CHIEF JUSTICE STONE delivered the opinion of the Court.

This is a motion for leave to file in this Court the petition of the Republic of Peru for a writ of prohibition or of mandamus. The petition asks this Court to prohibit respondent, a judge of the District Court for the Eastern District of Louisiana, and the other judges and officers of that court, from further exercise of jurisdiction over a proceeding *in rem*, pending in that court against petitioner's steamship *Ucayali*, and to direct the district judge to enter an order in the proceeding declaring the vessel immune from suit. The questions for decision here are whether this Court has jurisdiction to issue the writ, whether such jurisdiction should in our discretion be exercised in petitioner's behalf, and whether petitioner's appearance and defense of the suit in the district court was, as that court has ruled, a waiver of its claim that the vessel, being that of a friendly sovereign state, is im-